

CHAPTER 71

Overseas Resources Development Act, 1954

ARRANGEMENT OF SECTIONS

Section

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An Act to provide for the transfer to a statutory corporation constituted under the law of Tanganyika of the undertaking of the Overseas Food Corporation, and the dissolution of the last-mentioned Corporation; for the provision of funds under the Colonial Development and Welfare Act, 1940, in connection with the carrying on of the said undertaking; for the conclusion of fresh arrangements as to the obligations and rights of the last-mentioned Corporation in connection with the Southern Province port and railway; for the remission of interest on certain advances made under the Overseas Resources Development Act, 1948, to the Colonial Development Corporation; and for purposes connected with the matters aforesaid.

[25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Transfer of undertaking and dissolution of Overseas Food Corporation.

1.—(1) On such date as the Secretary of State may by order appoint (in this Act referred to as the date of transfer) the undertaking of the Overseas Food Corporation shall be transferred to the Tanganyika Agricultural Corporation.

(2) The supplementary provisions contained in the First Schedule to this Act shall have effect in relation to the transfer of the undertaking of the Overseas Food Corporation under this section.

(3) For the purposes of subsection (2) of section nine of the Overseas Resources Development Act, 1948 (which provides ^{11 & 12 Geo. 6.} for reports upon the activities of the Overseas Food Corporation ^{c. 15.} during each financial year) and of section sixteen of that Act (which relates to accounts), the financial year of the Overseas Food Corporation current on the date of transfer shall be deemed to end on that date.

(4) As soon as the Secretary of State is satisfied that full effect has been given to the transfer of the undertaking of the Overseas Food Corporation under this section, and that the provisions of sections nine and sixteen of the said Act of 1948 have been complied with on the part of that Corporation in respect of the financial year current on the date of transfer, he shall by order dissolve that Corporation.

(5) In this Act "the Tanganyika Agricultural Corporation" means the Corporation constituted under that name by an Ordinance of the Legislature of Tanganyika dated the first day of June, nineteen hundred and fifty-four, and known as the Tanganyika Agricultural Corporation Ordinance, 1954; and "the transferred undertaking" means the undertaking transferred to that Corporation by this section.

(6) Any power of the Secretary of State to make orders under this section shall be exercisable by statutory instrument.

2.—(1) In relation to any scheme made under section one of the Colonial Development and Welfare Act, 1940, for the purpose of providing funds required by the Tanganyika Agricultural Corporation for the purpose of carrying on the transferred undertaking, paragraph (b) of the proviso to subsection (1) of that section (which, as amended by subsequent enactments, limits the period during which schemes under that section may continue in force) shall not apply. Grants for Tanganyika Corporation under Colonial Development and Welfare Acts. 3 & 4 Geo. 6. c. 40.

(2) Any sums required by the Secretary of State in the period ending on the first day of October, nineteen hundred and fifty-seven, for making payments pursuant to a scheme made for the purpose aforesaid shall be left out of account for the purpose of paragraph (a) of the said proviso (which, as so amended, limits the annual amount and the aggregate amount of the sums to be paid for the purposes of schemes under the said section one):

Provided that the amount to be paid out of moneys provided by Parliament in the period aforesaid for the purposes of any

14 & 15 Geo. 6.
c. 20.

scheme or schemes made as aforesaid, together with the sums paid out of moneys so provided under subsection (2) of section three of the Overseas Resources Development Act, 1951, in respect of expenses of the Overseas Food Corporation for the financial year current on the date of transfer, shall not in the aggregate exceed one million seven hundred thousand pounds.

Application
and disposal
of transferred
property.

3.—(1) It shall be the duty of the Secretary of State to make such arrangements with the Governor of Tanganyika as may from time to time be necessary for securing—

(a) that property vested by this Act in the Tanganyika Agricultural Corporation is reserved by that Corporation for the purposes of the transferred undertaking, or for such other purposes as may from time to time be approved by the Secretary of State with the concurrence of the Treasury; and

(b) that any such property which is no longer required for such purposes as aforesaid is disposed of in accordance with arrangements approved as aforesaid, and the net proceeds of the disposal paid to the Secretary of State.

(2) Nothing in this section shall be construed as precluding the continuance in relation to the Tanganyika Agricultural Corporation (either without modification or subject to such modifications as may be approved by the Treasury) of arrangements for the replacement of property of the Overseas Food Corporation out of proceeds of sale of that property; and references in the foregoing subsection to property vested by this Act in the Tanganyika Agricultural Corporation shall be construed as including references to property acquired by that Corporation pursuant to such arrangements.

(3) Any sums received by the Secretary of State in respect of disposal of property of the Tanganyika Agricultural Corporation shall be paid by him into the Exchequer.

Special
provisions
as to Southern
Province port
and railway.

4.—(1) At any time before the date of transfer, the Secretary of State, with the approval of the Treasury, may conclude arrangements with the Governor of Tanganyika, the Overseas Food Corporation and other parties concerned, for securing—

(a) the release of the Overseas Food Corporation from any obligation to advance further money for the purpose of the construction of the port of Mtwara or its connected railway system, or to meet losses incurred in the operation of the said port and railway system;

(b) the extinction of the right of that Corporation to repayment of money advanced for the purpose aforesaid at any time before the first day of April, nineteen hundred and fifty-three (amounting to three million six hundred

and ninety-one thousand four hundred and three pounds), and interest thereon, and of interest accrued up to the conclusion of the said arrangements on money so advanced on or after the said date; and

- (c) the transfer to the Secretary of State of the right of the said Corporation to repayment of money advanced as aforesaid on or after the said first day of April.

(2) Any sums received by the Secretary of State in pursuance of arrangements made under this section shall be paid by him into the Exchequer.

5. The Secretary of State may, with the consent of the Treasury, remit the payment by the Colonial Development Corporation under section thirteen of the Overseas Resources Development Act, 1948, of interest in respect of so much of the advances made to the Corporation under section twelve of that Act, whether before or after the passing of this Act, as may be determined by the Secretary of State, with the approval of the Treasury, to be equivalent to net losses incurred for the purposes of any undertaking of the Corporation which has been abandoned before the passing of this Act, or which may be abandoned, with the approval of the Secretary of State, at any time after the passing of this Act.

6.—(1) This Act may be cited as the Overseas Resources Development Act, 1954, and this Act and the Overseas Resources Development Acts, 1948 to 1951, may be cited together as the Overseas Resources Development Acts, 1948 to 1954.

(2) Section one of this Act and the First Schedule thereto shall extend to Tanganyika.

(3) The enactments described in the Second Schedule to this Act are hereby repealed, to the extent specified in the third column of that Schedule,—

- (a) in the case of the enactments described in Part I of that Schedule, as from the date on which the Overseas Food Corporation is dissolved under this Act;
- (b) in the case of the enactments described in Part II of that Schedule, as from the date of transfer:

Provided that nothing in this subsection shall affect the operation of section eighteen of the Overseas Resources Development Act, 1948, as applied by subsection (5) of section four of the Overseas Resources Development Act, 1951.

SCHEDULES

Section 1.

FIRST SCHEDULE

SUPPLEMENTARY PROVISIONS AS TO TRANSFER OF UNDERTAKING OF OVERSEAS FOOD CORPORATION

1. On the date of transfer, all property and liabilities of the Overseas Food Corporation shall vest in and attach to the Tanganyika Agricultural Corporation by virtue of this Act and without further assurance.

2. On and after the date of transfer, all contracts made by and on behalf of the Overseas Food Corporation (whether in writing or not and whether or not of such a nature that rights and liabilities thereunder could be assigned by that Corporation) shall have effect as if made by or on behalf of the Tanganyika Agricultural Corporation, and as if for any reference therein to the Overseas Food Corporation there were substituted, in relation to anything falling to be done on or after the date of transfer, a reference to the Tanganyika Agricultural Corporation.

3. Without prejudice to the generality of the foregoing provisions of this Schedule—

(a) the Tanganyika Agricultural Corporation and all other persons shall have the like rights, powers and remedies (including in particular rights and powers as to the taking or resisting of legal proceedings) for ascertaining, perfecting or enforcing any rights or liabilities vested in or attaching to that Corporation under this Act as if they had at all times been rights or liabilities of that Corporation;

(b) any proceeding pending by or against the Overseas Food Corporation on the date of transfer may be continued by or against the Tanganyika Agricultural Corporation.

4. If, by reason of the situation outside the United Kingdom and Tanganyika of any property to which this Schedule applies, or of the application to any contract to which this Schedule applies, as the proper law thereof, of the law of any country outside the United Kingdom and Tanganyika, or for any other cause, the vesting of the property provided for by this Schedule is not fully effectual, or the Tanganyika Agricultural Corporation are not in a position to enforce rights under the contract, the Overseas Food Corporation shall give to the Tanganyika Agricultural Corporation such assistance, whether by executing an assurance of the property or an assignment of the contract or taking steps to enforce it or otherwise, as is in their power to give.

5. In this Schedule “property” includes, property, rights and powers of every description; and “liabilities” includes duties.

6. Nothing in this Schedule shall be construed as transferring to the Tanganyika Agricultural Corporation any obligation imposed on the Overseas Food Corporation by any enactment repealed by this Act.

SECOND SCHEDULE

Section 6.

ENACTMENTS REPEALED

PART I

*Enactments repealed from dissolution of Overseas Food
Corporation*

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 15.	The Overseas Resources Development Act, 1948.	Sections three to five. Sections six, nine, sixteen and the Schedule, so far as they relate to the Overseas Food Corporation.
14 & 15 Geo. 6. c. 20.	The Overseas Resources Development Act, 1951.	Sections one to three.

PART II

Enactments repealed from date of transfer

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 15.	The Overseas Resources Development Act, 1948.	Sections seven, eight, ten, thir- teen and eighteen, so far as they relate to the Overseas Food Corporation.

